

Risk neutral

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.124	0.101	0.036	0.072	0.258
Trial Fee-Shifting	0.097	0.082	0.044	0.074	0.224
Complete Fee-Shifting	0.123	0.077	0.076	0.100	0.281

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.227	0.192	0.008	0.261	0.319
Trial Fee-Shifting	0.120	0.114	0.025	0.116	0.207
Complete Fee-Shifting	0.196	0.196	0.011	0.246	0.308